

25STCV33426 25STCV33426

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV33426

KAREN

SAMFILIPPO vs LA LIVE PROPERTIES, LLC, et al.

August

27, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF KAREN SAMFILIPPO'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL

INTERROGATORIES, SET ONE, FROM DEFENDANT MARRIOTT HOTEL SERVICES LLC. PLAINTIFF KAREN SAMFILIPPO'S MOTION TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE. PLAINTIFF KAREN SAMFILIPPO'S MOTION TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR ADMISSION, SET ONE.

RULING:

The Court orders all
three Motions off calendar, considering supplemental responses.

Defendant to give notice.

I.

BACKGROUND

On November 17, 2025, KAREN

SAMFILIPPO (Plaintiff) filed a Complaint against LA LIVE PROPERTIES, LLC; L.A., ARENA COMPANY, LLC; AEG
(ANSCHUTZ

ENTERTAINMENT GROUP); and MARRIOTT INTERNATIONAL, INC. (Defendants).

On January 28, 2026,

Plaintiff filed the First Amended Complaint (FAC), listing Causes of Action
for:

1.

NEGLIGENCE;

2.

NEGLIGENT HIRING, SUPERVISION, AND RETENTION; and

3.

PREMISES LIABILITY.

Plaintiff alleges that she

suffered injuries from a violent physical assault that took place at LA Live,
owned and controlled by Defendants, while Defendants' security personnel were in
a tent instead of at their assigned patrol positions, due to Defendants' negligence
and emphasis on profits over protecting patrons.

On March 19, 2026, Defendants

L.A. ARENA COMPANY LLC, LA LIVE PROPERTIES, LLC. and ANSCHUTZ ENTERTAINMENT
GROUP, INC., filed a stipulation to dismiss punitive damages allegations from
the FAC as to them.

On July 28, 2026,
Plaintiff filed Motions to Compel Further Responses to (1) Special Interrogatories, (2) Requests for Production of Documents, and (3) Requests for Admissions. Additionally, Plaintiff requests monetary sanctions in specified sums, as against Defendant and counsel.

MARRIOTT HOTEL SERVICES,
LLC (Defendant) opposes, arguing that the Motions are moot after supplemental responses, and sanctions are unjustified, given more time needed to obtain information within a large entity.

II.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; Code Civ. Proc., §§ 2030.300, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to interrogatories....”]; and 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to an inspection demand....”].) A propounding party’s remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1127.) If interrogatory responses lack specificity, then parties may move to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a), providing for motions to compel, where parties deem that an answer is evasive, incomplete, or inadequate as to specification of documents. (*Best Products, Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181, 1190.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

Interrogatory responses must be (1) the information sought, (2) an exercise of a valid option to produce writings, or (3) an objection. (*Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 293.) An interrogatory response must be as complete and straightforward as reasonably available

information permits. (Code Civ. Proc., § 2030.220.) A response must “represent the interrogated party’s present best and complete answer.” (Fuss v. Superior Court (1969) 273 Cal.App.2d 807, 816.) If a respondent does not have personal knowledge for a full response, the party shall state that and make a reasonable and good faith effort to obtain the information by inquiries. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 406; Regency Health Services, Inc. v. Superior Court (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 782, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.) “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. [Citation.] Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783. Accord, Field v. U.S. Bank Nat’l Assn. (2022) 79 Cal.App.5th 703, 708.)

A document response must consist of: 1) An agreement to comply, stating whether the productions or inspection will be allowed “in whole or in part,” and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.) Compliance includes all documents or things in the demanded category that are in the “possession, custody, or control” of the responding party, such as from other corporations. (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813 [quoting Code Civ. Proc., § 2031.220].) With regard to document requests, a response expressing an inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent’s possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.) “Even where a party deems a demand to be objectionable, he [she, or it] still must identify those items which fall into the category of item in the demand to which an

objection is being made.” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901, fn.3.) “Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.” (Code Civ. Proc., § 2031.280, subd. (a).)

If a party objects to discovery requests without withdrawing them, but also provides complete, code-compliant responses to the requests, then nothing is left to address in a motion to compel. (American Federation of State, County & Municipal Employees v. Metropolitan Water Dist. (2005) 126 Cal.App.4th 247, 269.)

“[I]f documents responsive to a document request are withheld on privilege grounds, a privilege log or some equivalent specification of any asserted privilege objection ‘shall’ be supplied.” (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813.)

Monetary discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

A decision whether to impose sanctions for failures to meet and confer sufficiently has been reviewed on appeal for an abuse of discretion. (Parker v. Wolters Kluwer U. S., Inc. (2007) 149 Cal.App.4th 285, 297; Leko v. Cornerstone Bldg. Inspection Serv. (2001) 86 Cal.App.4th 1109, 1124.)

Where satisfactory

responses have been served after the filing of motions to compel, courts nonetheless may award sanctions. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256.)

III.

ANALYSIS

Plaintiff's Replies

contain assertions that not all subject discovery items were supplemented, Defendant should be compelled to serve further responses, and it and counsel should be sanctioned after already having had sufficient extensions to supplement after meeting and conferring. Plaintiff adds that meritless discovery objections have not been withdrawn, and there are no privilege logs.

Defendant characterizes

the Motions as being moot after supplemental code-compliant responses served.

Where respondents served

untimely discovery responses after parties have filed motions to compel responses, courts have broad discretion as to ruling, including ordering the parties to meet and confer and taking motions off calendar. (Sinaiko Healthcare Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778.)

Here, the Court exercises

its discretion to order the matters off calendar, and to require further meeting and conferring, and up-to-date motions if desired, as the current separate statements are not narrowed or updated with the supplemental responses, and the responses and replies are inefficiently jumbled as to some initial responses being incorporated by reference as the supplemental responses.

Regarding substantial

justification in avoidance of sanctions, Defendant states that the large corporate entity needed more time gathering additional documents and information that Plaintiff's counsel requested, by Defendant's routing requests through multiple channels and layers of review. (Oppositions, Paula Dizon Declaration, ¶ 13).

IV.

CONCLUSION

Therefore, the Court orders
all three Motions off calendar and awards no sanctions by finding substantial
justification.